Victoria EESS legislation guidance

HTML正文抽取PDF阅读版

来源ID：SRC-211

原始URL：https://www.energysafe.vic.gov.au/industry-guidance/electrical/appliances-equipment-and-manufacurers/eess-legislation-and-regulations

来源快照核查：2026-11-03；转换日期：2026-11-03

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Overview

The laws covering the sale of electrical equipment in Victoria were changed on 1 April 2019. These laws and regulations are called the Electrical Equipment Safety System (EESS).

Introduced to improve consumer safety for household electrical equipment sold in Victoria, the EESS aims to harmonise various state legislation across Australia, and for the first time, provide the public with a national database of responsible suppliers and electrical equipment registrations. The database will ensure that this electrical equipment is easily traced to the supplier and allow users to verify its legal supply in Australia and New Zealand.

New laws and regulations

The EESS has changed the requirements for businesses that import, manufacture or sell specific electrical equipment. All applicable electrical equipment sold in Victoria must be linked to a registered responsible supplier prior to sale.

Each item will be categorised in one of three levels:

Level 1 – Low risk

Level 2 – Medium risk

Level 3 – High risk.

Equipment classified as Level 2 or Level 3 (as listed in AS/NZS 4417.2.) must also be registered on the national database. Technical safety requirements under the EESS have not changed, however, better evidence of conformity is required for some items.

A single Regulatory Compliance Mark (RCM) replaces the requirement to mark Approval numbers – see below.

This system is a self-funding, ‘user-pays’ system where registration fees fund improved compliance, surveillance and post-market enforcement activities.

Energy Safe Victoria reviewed the Electricity Safety (Equipment) Regulations 2009 (which expired 21 April 2019) and developed a revised set of regulations to facilitate the implementation of the EESS legislation. These regulations came into force on 1 April 2019.

Features of EESS

Certification database

National Supplier registration

Single Regulatory Compliance Mark (RCM)

Risk based classification of equipment

Funding for market surveillance

Consumers can check and verify a product’s registration and certification.

Scope of EESS

Electrical equipment covered by EESS is:

low voltage electrical equipment (50V AC to 1000V AC or between 120V DC to 1500V DC)

designed, or marketed as suitable for household, personal or similar use.

Requirements of risk levels Level 3 – High Risk Supplier must be registered – $216.89 annual fee

Equipment must be certified

Equipment must be registered – $81.28 annual fee. Level 2 – Medium Risk Supplier must be registered – $216.89 annual fee

Equipment must be registered – $81.28 annual fee

Test report to be made available to regulator on request. Level 1 – Low Risk All electrical equipment that does not fall under Level 2 or 3

Supplier must be registered – $216.89 annual fee

Documentary evidence of compliance with relevant standard to be provided to regulator on request. Further information is available at www.eess.gov.au

Responsibilities of manufacturers and sellers

Manufacturers and importers

Importers and onshore manufacturers of applicable electrical equipment must register as a responsible supplier.

All applicable electrical equipment sold in Victoria must be linked to a registered responsible supplier prior to sale. If the equipment is classified as Level 2 or Level 3, it must also be registered on the national database.

Level 3 electrical equipment must have a Certificate of Conformity before it can be registered on the national database.

Suppliers of Level 2 electrical equipment must maintain a compliance folder for their level 2 products. This folder must be made available to Regulators within 14 days of initial request.

Any state electrical regulator or Registered Electrical Contractor (REC)’s accredited third party certifier may issue a Certificate of Conformity.

It is the responsibility of the supplier or importer to maintain current registration for any in-scope electrical equipment supplied.

Sellers (other than manufacturers and importers)

Retailers, wholesalers, internet-based suppliers, auction and market sellers who did not import or manufacture the products they are supplying are required to ensure those products are linked to a registered responsible supplier before purchasing the equipment from a manufacturer or supplier.

For any new Level 2 or Level 3 equipment purchased by the seller, the seller must ensure the equipment is registered on the EESS database when the purchase is made, and that the products are marked with the Regulatory Compliance Mark (RCM).

Any level 1 equipment purchased by the seller may only be purchased from a registered responsible supplier and must be marked with the RCM.

More information

For information about in-scope electrical equipment, responsible suppliers and equipment registration, go to the EESS website

See also EESS recognition, exemptions and allowances

Date: 03/11/2026 9:20

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Reviewed 25 July 2025